CITY OF OPA-LOCKA
"The Great City"

CLERK'S ACTION SUMMARY MINUTES
SPECIAL COMMISSION MEETING
Wednesday, August 7, 2019
5:30 P.M.
Sherbondy Village Auditorium
215 Perviz Avenue
Opa-locka, FL 33054

1. CALL TO ORDER:

Mayor Matthew Pigatt called the meeting to order at 5:30 p.m. on Wednesday, August 7, 2019 in the Sherbondy Village Auditorium, 215 Perviz Avenue, Opa-locka, Florida.

2. ROLL CALL:

The following members of the City Commission were present: Mayor Matthew Pigatt, Vice Mayor Chris Davis, Commissioner Alvin Burke, and Commissioner Sherelean Bass. Also in attendance were: Acting City Manager Newall Daughtrey, City Attorney Burnadette Norris-Weeks, and City Clerk Joanna Flores. Commissioner Joseph L. Kelley arrived at 5:35 p.m.

3. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

4. INVOCATION:

The invocation was delivered by Commissioner Sherelean Bass.

5. PUBLIC INPUT:
Agenda Items Only

Dorothy Johnson, 13724 NW 22nd Place, Opa-locka, FL, asked what the transferring of funds were for. She said she frequently asks questions that do get answers and asked that the commission address this during their discussion of the items on the agenda.

6. PRESENTATION:
State Representative James Bush, III, District 109
Legislative Update

Representative Bush came before the commission and provided a brief update on what was discussed during his recent trip to the Joint Legislative Auditing Committee session in Tallahassee. He informed the commission that he presented several bills to the committee that positively provides assistance to juveniles and the elderly. He thanked the manager, the police chief and other City staff that accompanied them to Tallahassee for the work they did in preparing the package and presenting a good argument to the committee in the hopes of securing additional funding for the City. He urged the commission to show a unified front so Tallahassee

can see that everyone is working together on behalf of the City and be inclined to issue much needed additional funding.

Commissioner Kelley thanked Representative Bush for his efforts in taking the time to go to Tallahassee to secure funding for the City.

Commissioner Bass shared Commissioner Kelley's sentiments.

Mayor Pigatt also thanked Representative Bush for working on behalf of the City and informed him that he is welcomed to come back with an update at any time. He encouraged the residents to go to Representative Bush's office at 13300 NW 27th Avenue, Suite 5, with any issues or concerns they may have.

7. CITY MANAGER FINALIST REVIEW, DISCUSSION AND POSSIBLE CITY COMMISSION ACTION – City Commission discussion on City Manager Finalists; briefing on all phases of the interview process; and possible City Commission action.

A motion was made Mayor Pigatt to appoint the city commission as a selection committee for the purpose of selecting a city manager.

It was moved by Vice Mayor Davis, seconded by Commissioner Bass to pass the motion.

There being no discussion, the motion passed by 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

Mayor Pigatt asked Mr. Baenziger to come before the commission and provide a status report on the selection process for the city manager position.

Colin Baenziger, Baenziger & Associates, Daytona Beach Shores, FL, said the search started about eight weeks ago through recruiting, advertising, and an e-mail list. He was not entirely pleased with the selection at that time, so they went back out and accepted additional applications for the position. A total of sixty seven (67) candidates from twenty (20) states applied for the position and it was narrowed down to a dozen that were strong. There were several applicants who have withdrawn for different reasons and left the final number of applicants at eight (8) for the commission to consider. He presented a ballot process to the commission and informed them that it is just a suggestion and they do not have to go along with it.

The commission agreed to the process suggested by Mr. Baenziger and he presented them with ballots to begin making their selections.

Mayor Pigatt thanked Mr. Baenziger for the work he has performed as part of this selection process; it has been very clear and transparent.

Commissioner Burke also thanked the consultant for putting together a list of fine candidates for the position.

A motion was made by Commissioner Bass for a five (5) minute recess to complete the ballots.

It was moved by Commissioner Bass, seconded by Commissioner Kelley to recess the meeting for five (5) minutes.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

After tallying all of the votes in two (2) rounds of ballot selections, five (5) finalists and two alternates were chosen to move forward in the next part of the process. They are as follows:

1. Warren Brown
2. Greg Lynk
3. Lawrence McNaul
4. John Pate
5. Thomas Thomas

1st and 2nd Alternate Candidates:

1. William Shanahan
2. DeCarlon Seawood

The commission thanked Mr. Baenziger for all of the work he has done to aide in the selection of a qualified city manager for the City of Opa-locka.

8. RESOLUTIONS:

a) A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO EXECUTE A LEASE (EXHIBIT "A") WITH SFSE, LLC TO OCCUPY SPACE AT 780 FISHERMAN STREET; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above resolution was read by Attorney Norris-Weeks.

It was moved by Commissioner Kelley, seconded by Commissioner Bass for discussion.

Commissioner Burke asked if the City found a leasing agent for the building.

Acting City Manager Daughtrey said "No".

Mayor Pigatt asked who negotiated the contract for the building.

Acting City Manager Daughtrey said Executive Assistant to the City Manager Sha'mecca Lawson is currently managing the entire building and is the one who negotiated the contract. The objective is to lease out the whole building.

Vice Mayor Davis asked for Ms. Lawson to explain how the rates were determined for leasing the building.

Ms. Lawson came before the commission and explained that the rates were determined from the current market rates which have gone down and since they were renting so much space, the City worked with them on the rates per square footage.

Commissioner Kelley commended Ms. Lawson for taking on the task of managing the building. He asked if the setup will remain the same for the drop off and pick up of the youth by their parents.

Ms. Lawson confirmed this and also stated that there will be security provided for the school by the school during class hours.

Commissioner Burke asked Ms. Lawson if she negotiated where the school would pay their share of the property taxes.

Ms. Lawson said, "Yes".

Mayor Pigatt asked what steps have taken to secure a property manager for Town Center One. He is unsure of Ms. Lawson's level of expertise with managing property and believes the City needs an experienced property manager that has experience in negotiating and determining the market. He suggested that an RFP be put out in search of a property manager.

City Attorney Norris-Weeks said she will look into what it on the books to determine if it needs to go out for procurement, but she is sure it will need to be put out.

There being no further discussion, the motion on the resolution passed by a 4-1 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	No

b) A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE INTERFUND TRANSFER OF $133,424.29 FROM THE STORMWATER DIVISION WITHIN THE ENTERPRISE FUND TO FUND PAYMENT FOR APPROPRIATE LINE ITEM EXPENSES; PROVIDING FOR ADOPTION OF REPRESENTATIONS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above resolution was read by Attorney Norris-Weeks.

It was moved by Commissioner Kelley, seconded by Commissioner Burke for discussion.

Commissioner Kelley asked the manager to explain what is going on with the item.

Acting City Manager Daughtrey said the work has already been done, but the oversight board will not allow the City to make the payment if it exceeds the exact amount. They are however, able to move funds around in an effort not to go over that amount.

Vice Mayor Davis said he is concerned that the City does not go back to bad practices that were used in the past to handle the City's business.

Mayor Pigatt echoed the vice mayor's concern and said he hopes all of the i's are being dotted and the t's crossed where handling the City's finances is concerned. He said this is not the first time something like this has happened and he does not know if funds and prevention measures are in place to avoid illegal activity from taking place and placing burden on the residents.

Acting City Manager Daughtrey said a stakeout was put in place in the area which included video surveillance and it was successful. They now have to go through the legal and criminal process to recoup all of the funds that been spent.

Mayor Pigatt thanked the City Manager's Office, Code Enforcement, and the Police Department for their efforts in conducting an investigation in this matter. He would like to see something come before the commission that they can approve to avoid this from happening again.

Commissioner Kelley agreed with the mayor.

There being no further discussion, the motion on the resolution passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

c) A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE INTERFUND TRANSFER OF $60,000.00 FROM THE ROADS AND STREETS MATERIAL DIVISION WITHIN PUBLIC WORKS IN THE GENERAL FUND TO FUND PAYMENT FOR APPROPRIATE LINE ITEMS, WITHIN THE SANITATION DIVISION WITHIN PUBLIC WORKS IN THE GENERAL FUND; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above resolution was read by Attorney Norris-Weeks.

It was moved by Commissioner Kelley, seconded by Commissioner Burke for discussion.

Commissioner Burke asked why the City is still paying Intercounty Engineering when they are not doing what they are supposed to be doing.

Public Works Director Airia Austin said the City started the process internally and discovered it was not certified to handle hazardous waste.

Vice Mayor Davis asked how Intercounty Engineering was selected to handle the project.

Public Works Director Airia Austin said they were selected because there was a line item contingency for the project. It had to go out for bid after the project exceeded the budgeted funds. At this time the work is not being done because of all of the oil that is in the drain and the pans that need to be emptied. The work has been halted because DERM has noticed the City to stop any work until the oil is removed.

Commissioner Kelley asked what happens if the commission does not approve the item.

Public Works Director Airia Austin said the City will be in violation of its consent agreement for the removal of hazardous waste.

Commissioner Kelley said if that is what it boils down to, then the commission needs to handle this now and deal with whatever company is in place to handle the removal at a later time.

Mayor Pigatt said this is why he expressly requests that the information is provided in advance so that the commission can have time to review the documents and make sound decisions.

There being no further discussion, the motion on the resolution passed by a 4-1 vote.

Commissioner Burke	No
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

d) A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE INTERFUND TRANSFER OF $132,620.20 FROM THE WATER AND SEWER CAPITAL PROJECTS DIVISION WITHIN THE ENTERPRISE FUND TO FUND PAYMENT FOR APPROPRIATE LINE ITEMS, WITHIN THE SEWER SERVICE DIVISION WITHIN THE ENTERPRISE FUND PROVIDING FOR OTHER MATTERS PROPERLY RELATING THERETO; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above resolution was read by Attorney Norris-Weeks.

It was moved by Commissioner Kelley, seconded by Vice Mayor Davis to pass the resolution.

There being no discussion, the motion on the resolution passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

9. ADJOURNMENT:

There being no further business to come before the Commission, it was moved by Commissioner Kelley, seconded by Vice Mayor Davis to adjourn the meeting at 7:19 p.m.

MAYOR

ATTEST:

CITY CLERK